

26.2.2024

DHR – K.Govindaraju

V/s

JDR - Ravi Raju

ORDERS ON MAINTAINABILITY

The petitioner has filed this petition to execute the decree in O.S.No. 4007 of 2007, wherein the suit was filed for permanent injunction and mandatory injunction with respect to the suit schedule property. The court by order dt. 13.07.2010 was pleased to decree the suit with a direction *“It is declared that plaintiff has easementary right over B-schedule property.*

The defendant or his men, servants attorneys, watchmen or any persons claiming any rights, through or under the defendant are hereby restrained from interfering with the right of way of the plaintiff.

The defendant is restrained

from putting up any construction on the B- schedule property.

The defendant is directed by way of decree of mandatory injunction to remove the illegal structure like Sajja and door facing towards common passage.

The Regular First Appeal No.1674 of 2010 was filed challenging the said decree which came to be withdrawn on 22.07.2022. Hence this petition is filed seeking execution of decree in O.S.4007 of 2007.

2. The learned counsel for petitioner has submitted the entire records along with the photographs and prayed that the wall is constructed in 5 feet as such in view of decree the same needs to be removed. In the prayer he has sought for issuing necessary warrant to remove illegal structure like Sajja, Door and wall with pillar facing towards passage of D.H.R residence i.e., 'B' schedule

property.

3. The J.D.R has appeared and filed objections contending that he has not put any structure over 'B' schedule property and he has purchased the property with existing building itself. It was constructed in the year 2000 by his vendor. The report of the Court Commissioner measured 40 feet and the width differs which was not 5 feet as claimed by D.H.R. In the decree he was directed to remove Sajja and door facing towards common passage before the warrant was issued. In Execution Petition No. 685 of 2011, the R.F.A No.1674 of 2010 was preferred. To maintain the peace the JDR has already removed Sajja and door facing 'B' schedule property. The DHR stopped Execution petition No.685 of 2011. the same came to be dismissed for default on 17.07.2021. There is no Sajja or door window facing 'B' schedule property. There is no illegal

construction. Hence prays to dismiss the petition. He has produced the photographs.

4. Heard. The learned counsel for JDR has produced citations and DHR has submitted written arguments along with citations.

5. In view of pleadings by JDR that already the decree is complied by removing Sajja and door facing towards common passage. Perusal of the photographs discloses that, already the wall is plastered by removing the windows and there is no Sajja and common passage left free. Admittedly this is the executing court which cannot go behind the decree which is also upheld in the decision submitted by DHR in the W.P.No. 14696 of 2022 dt. 4.8.2023 and Judgment in Civil Appeal 1312-1313 of 2023 dt. 21.02.2023 in the case of Sanwarlal Agarwal and others V/s Ashok Kumar Kothari and others,

wherein it is held that the Executing Court must take the decree as it stands as it is binding and conclusive between the parties to the suit and also referred Judgment in State of Madhya Pradesh V/s Mangilal Sharma in CD 1997 SC 689 (Supreme Court of India), it is held that,:

'A Declaratory decree, in my opinion, cannot be executed as it only declares the rights of the decree- holder qua the Judgment Debtor and does not in terms, direct the Judgment Debtor to do or to refrain from doing any particular act or thing. Since there is no command issued to the Judgment Debtor to obey, the civil process cannot be issued for the compliance of that mandate or command. The decree- holder is free to seek his legal remedies by way of suit or otherwise on the basis of the declaration given in his favour..".

The Judgment referred by DHR in Civil Appeal 14630 of 2015 is not applicable to the case on hand.

6. The DHR is claiming for 5 feet of 'B' schedule property, as he has been left only 35 feet property and alleges encroachment. Admittedly the suit is one for permanent and mandatory injunction. The DHR is seeking for removal of Sajja and door facing towards common passage which was already complied. Now what is sought under the decree execution is the removal of 5 feet wall. In the decree there is no mention of removal of the said wall. The reliefs which are not expressly granted by the Court are presumed to be denied. Within the limited jurisdiction, the executing Court in the light of submission that the said 5 feet wall is existing at the time of construction in the year 2000 itself that is prior to the suit itself, the same cannot be sought to be

executed under the Decree wherein there is no express direction for removal of the same. If the court was inclined to grant the said relief the same would have been mentioned along with the Sajja and the door. In the absence of specific mention of the same and the dispute that the wall is existing since construction in the year 2000, this fact is not raised in the suit. This court cannot grant the same which has not been expressly stated.

7. Further there is a reference of report of the Commissioner which has also referred to the common passage. Where there is no reference of encroachment of said 5 feet. There is also finding by the court with respect to the 5 feet x 40 feet passage in the sale deed which is referred as set back in his evidence. There is only finding that there is easementary right to 'A' schedule property and 'B' schedule

property is right of way reserved to the plaintiff. In view of clear grant of direction to removal of Sajja and Wall this executing court cannot direct removal of wall with pillar which is claimed to be existing in the year 2000 itself, as the entire building stands on the very said wall and pillar. As such the application is not maintainable and the same is hereby rejected.

XXIV Addl.City Civil &
Sessions Judge,
Bengaluru